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Case Number: 24TRCV02677 Hearing Date: July 8, 2026 Dept: P

Demurrer to Plaintiff's Second Amended Complaint

Moving Party: Defendants Edgar Shrom and Mary Beth Shrom

Responding Party: Plaintiff Eric Sabety

RULING

The court considered the moving papers, opposition, and reply. Defendants' Demurrer to Plaintiff's SAC is SUSTAINED in its entirety without leave to amend.

PROCEDURAL BACKGROUND

On August 12, 2024, Plaintiff Eric Sabety ("Plaintiff") filed a complaint against Defendants Edgar Shrom and Mary Beth Shrom (collectively, "Defendants"), alleging five causes of action for: (1) Fraud; (2) Breach of Contract; (3) Breach of Fiduciary Duty; (4) Resulting Trust; and (5) Financial Elder Abuse.

On November 27, 2024, Defendants filed a demurrer.

On December 30, 2024, Plaintiff filed a first amended complaint against Defendants, alleging four causes of action for: (1) Breach of Oral Contract; (2) Breach of Fiduciary Duty; (3) Resulting Trust; and (4) Financial Elder Abuse.

On April 27, 2026, having been given leave of court, Plaintiff filed a second amended complaint ("SAC") against Defendants, alleging six causes of action for: (1) Breach of Oral Contract; (2) Breach of Implied in Fact Contract; (3) Breach of Implied in Fact Contract; (4) Resulting Trust; (5) Financial Elder Abuse; and (6) Declaratory Relief.

On May 29, 2026, Defendants filed the instant demurrer. On June 24, 2026, Plaintiff filed an opposition. On June 30, 2026, Defendants filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that this action involves two condominiums in Redondo Beach, California, one located at 223 S. Prospect #8 (the "Prospect Property"), and the other located at 160 The Village, Unit 13 (the "Village Property"). (SAC, ¶ 4.) Plaintiff alleges that in 1984, Defendant Edgar Shrom ("Edgar") claimed to be the owner of both condominiums and told Plaintiff that he was concerned about losing both properties due to his difficulty with paying the mortgages. (SAC, ¶¶ 5, 7.) Plaintiff alleges that Edgar subsequently proposed to give a 50% interest in both properties to Plaintiff and another individual, John Davis ("Davis"), in return for $50,000.00. (SAC, ¶ 7.) Plaintiff alleges that he agreed to invest his funds in both properties and confirmed his agreement with Edgar over the phone. (SAC, ¶ 9.) Plaintiff alleges that he withdrew his savings from the bank and provided it to Defendant Mary Beth Shrom ("Mary Beth") for investment in the condominiums. (SAC, ¶ 10.) Plaintiff alleges that he anticipated that when the condominiums were sold, he would receive half of the proceeds or the parties would agree on terms for the Village Property to be distributed to Plaintiff. (SAC, ¶ 12.) Plaintiff alleges that Defendants reported income and expenses on both condominiums to Plaintiff's accountants, leading Plaintiff to believe that he was a 50% owner of the Prospect Property and Village Property. (SAC, ¶ 12.)

Next, Plaintiff alleges that he was deployed for military service between 1990 and 1991. (SAC, ¶ 13.) Plaintiff alleges that prior to his deployment, he asked Edgar if he should list Plaintiff's name on the condominiums, and Edgar told him he preferred to leave the properties in Defendants' names even though Plaintiff was a "half owner." (SAC, ¶ 13.) Plaintiff alleges that he returned to military service in 2009 and returned to the U.S. in July 2022. (SAC, ¶¶ 16-17.)

Plaintiff alleges that in August 2022, he visited Davis and learned for the first time that Defendants had sold the Prospect Property. (SAC, ¶ 17.) Plaintiff alleges that Edgar confirmed the sale of the Prospect Property and informed Plaintiff that Edgar had "terminated" Plaintiff's interest in the partnership due to Plaintiff's "non-participation." (SAC, ¶¶ 18-19.) Plaintiff alleges that in May 2024, he ordered title information from Los Angeles County regarding the Village Property and obtained a quit claim deed conveying an interest in the Village Property from Russell E. Hanlon to Defendants, recorded on August 20, 1984, the same day or within a few days after Plaintiff provided his funds to Mary Beth. (SAC, ¶ 20.) Plaintiff alleges that the entire purchase price for the interest in the Village Property was paid using funds from Plaintiff's savings. (SAC, ¶ 20.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Defendants demur to the entirety of the SAC on the grounds that each cause of action is barred by the applicable statutes of limitations and by the doctrine of laches. Defendants argue that Plaintiff's action arises out of events that occurred about 40 years ago, in 1984. Defendants also argue that Plaintiff's first, second, and third causes of action are barred by the statute of frauds. Here, Defendants argue that there are no writings reflecting the material terms of the alleged real property transaction. Defendants argue that Plaintiff's fourth cause of action fails because a resulting trust is a remedy rather than an independent cause of action, and the SAC fails to allege facts showing that a trust was created from Defendants' conduct. Defendants argue that Plaintiff's fifth cause of action fails because none of the parties were elders when the alleged wrongdoings occurred. Finally, Defendants argue that Plaintiff's sixth cause of action for declaratory relief fails because it is duplicative of Plaintiff's first, second, third, and fourth causes of action.

Opposing Party's Argument

Plaintiff argues that he has adequately alleged that delayed discovery applies in response to Defendants' statute of limitations argument. Plaintiff also argues that the SAC alleges full performance, partial performance, and estoppel as exceptions to the statute of frauds. Plaintiff argues that Defendants' sale of the Prospect Property and termination of Plaintiff's property interest were not reasonably discoverable by Plaintiff because Defendants knew that Plaintiff was in military service for years. Plaintiff argues that the SAC sufficiently states a cause of action for resulting trust and argues that his cause of action for financial elder abuse is supported because it alleges that Plaintiff was older than 65 in August of 2022 when Edgar informed Plaintiff that he had disenrolled Plaintiff from their partnership. Plaintiff argues that his cause of action for declaratory relief is not barred because the SAC alleges a current controversy regarding the Village Property. Plaintiff argues that laches does not apply because Defendants fraudulently concealed their conduct by selling the Prospect Property without informing Plaintiff.

Reply Argument

Defendants reiterate their argument that laches applies because nearly fifty years have passed and documents and memories have faded away. Defendants argue that Plaintiff fails to allege that Defendants engaged in any form of concealment prior to 1990, such that the statutes of limitations applicable to Plaintiff's contract-based causes of actions would have already run. Defendants argue that Plaintiff has not sufficiently alleged delayed discovery because Plaintiff has not alleged that he was unable to discover Defendants' breaches of obligation earlier despite reasonable diligence. Defendants argue that Plaintiff has failed to allege any facts sufficient to establish a partnership with Defendants, and the alleged conversation in which Plaintiff was told that he had been "disenrolled" from the partnership occurred after the statute of limitations for the alleged oral contract had run. Next, Defendants argue that the statute of frauds bars Plaintiff's contract causes of action because the payment of money alone is insufficient to qualify as full or partial performance. Defendants argue that equitable estoppel does not apply because Plaintiff has not established the terms of an agreement with Defendants, and laches applies. Defendants argue that Plaintiff's resulting trust cause of action fails because Plaintiff has not alleged specific intent and because the quitclaim deed contradicts Plaintiff's cause of action as it was executed in 1983. Defendants reiterate their arguments that Plaintiff's fifth and sixth causes of action fail.

Requests for Judicial Notice

Defendants request that the court take judicial notice of the following records: (1) a copy of Plaintiff's complaint; (2) a copy of Plaintiff's first amended complaint; (3) a copy of Plaintiff's second amended complaint; (4) a copy of the grant deed to the property located at 223 S. Prospect, #8 in Redondo Beach, California; and (5) a copy of the individual quitclaim deed recorded on August 20, 1984 as the property located at 160 The Village, Unit 13 in Redondo Beach, California.

The court may take judicial notice of its own records pursuant to Evidence Code Section 452(d). Therefore, the court GRANTS Defendants' request for judicial notice of Plaintiff's complaint, first amended complaint, and second amended complaint. Pursuant to Evidence Code Section 452(h), the court may take judicial notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." Therefore, the court GRANTS Defendants' request for judicial notice of the grant deed and the individual quitclaim deed.

Accordingly, Defendants' request for judicial notice is GRANTED in its entirety.

Plaintiff also requests that the court take judicial notice of the same individual quitclaim deed recorded August 20, 1984 in addition to a copy of Los Angeles County records pertaining to the property located at 160 The Village, Unit 13, in Redondo Beach, California.

Pursuant to Evidence Code Section 452(h), Plaintiff's request for judicial notice is GRANTED in its entirety.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Defendants' counsel declares that on April 29, 2026, he sent a meet and confer letter to Plaintiff, who responded with a letter declining to amend the SAC and denying the basis for demurrer identified by Defendants. (Brumage Decl., ¶¶ 2-3.)

Because the parties have not met in person, by telephone, or by video conference, the court finds that the meet and confer requirements have not been satisfied. However, the court will still discuss the merits of Defendants' demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. Statutes of Limitations

Defendants argue that all six of Plaintiff's causes of action are barred by the applicable statutes of limitations.

For breach of a contract "not founded upon an instrument of writing" absent certain exceptions, the statute of limitations is two years. (Code Civ. Proc., Section 339(1).)

"The applicable statute of limitations in an action to establish a resulting trust is the four-year statute found in Code of Civil Procedure Section 343." (Estate of Yool (2007) 151 Cal.App. 4th 867, 875.) "The statute of limitations does not begin to run against a voluntary resulting trust in the absence of repudiation by the trustee, that is, until demand has been made upon the trustee and the trustee refuses to account or convey." (Ibid.)

The statute of limitations for a cause of action for financial elder abuse is four years. (Welf. & Inst. Code Section 15657.7.)

"The duration of the limitations period applicable to a declaratory relief action is determined by the nature of the underlying obligation sought to be adjudicated." (Snyder v. California Ins. Guarantee Assn. (2014) 229 Cal.App.4th 1196, 1208.)

As the court will discuss below, the court has found that Plaintiff's fourth and fifth causes of action independently fail, and thus the court will focus its analysis on Plaintiff's first three causes of action. The court notes that Plaintiff's sixth cause of action for declaratory relief is dependent upon the rest of Plaintiff's causes of action.

Plaintiff argues that the delayed discovery rule applies, such that none of three contract-based causes of action are time-barred.

"[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action." (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803.) "Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.'" (Id. at 806.) "A plaintiff has reason to discover a cause of action when he or she 'has reason at least to suspect a factual basis for its elements.'" (Id. at 807.) "Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period." (Ibid.) A plaintiff must "must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (Ibid.)

Plaintiff argues that delayed discovery applies to his causes of action for breach of oral contract and breach of implied in fact contract because "Defendants knew Plaintiff was in military service for years, frequently out of the country, and at times out of the state." (Opp. 6:11-14.) Plaintiff argues the SAC alleges that Edgar assured Plaintiff that their agreement would be honored and Defendants had provided tax reporting information to Plaintiff's accountants "in the first few years." (Opp. 6:15-19.)

The court is unpersuaded by Plaintiff's argument and finds that Plaintiff has insufficiently alleged his inability to have made earlier discovery despite reasonable diligence. Plaintiff has not alleged that after the few years immediately following the parties' agreement in 1984, he requested to continue receiving financial reports regarding the Prospect and Village Properties. Plaintiff alleges that he was deployed between 1990 and 1991, and again in 2009. (SAC, ¶¶ 13, 16.) Plaintiff has not alleged that he made any attempt to inquire about the status of the parties' agreement between those time periods, though Plaintiff alleges that he "saw [Edgar] periodically" after Plaintiff's return in 1992. (SAC, ¶ 14.) Plaintiff alleges that he researched the title of the Village Property for the first time in 2024. (SAC, ¶ 20.) Suffice to say, such a search was possible at any point after the alleged agreement.

Therefore, the court finds that the SAC's allegations indicate that Plaintiff did not exercise reasonable diligence, and thus the delayed discovery doctrine does not apply.

C. First, Second, and Third Causes of Action: Statute of Frauds

The court will continue to address the parties' arguments regarding the applicability of the statute of frauds to Plaintiff's three contract-based causes of action.

Civil Code Section 1624(a)(3) provides that an agreement for "the leasing for a longer period than one year, or for the sale of real property, or of an interest therein" is invalid unless the agreement "or some note or memorandum thereof, are in writing and subscribed by the party to be charged or by the party's agent."

Here, Plaintiff refers only to the individual quitclaim deed that was recorded on August 20, 1984, "indicating a transfer of 50% interest in [the Village Property] from Russell E. Hanlon to [Defendants]." (SAC, ¶ 37.) Plaintiff does not allege any writing between Plaintiff and Moving Defendants memorializing the parties' alleged agreement, and thus the court finds that Plaintiff has not sufficiently alleged compliance with the statute of frauds.

1. Part Performance & Full Performance Exception

“ ‘Under the doctrine of part performance, the oral agreement for the transfer of an interest in real property is enforced when the buyer has taken possession of the property and either makes a full or partial payment of the purchase price, or makes valuable and substantial improvements on the property, in reliance on the oral agreement.’” (Sutton v. Warner (1993) 12 Cal.App.4th 415, 422, quoting 1 Miller & Starr, Cal. Real Estate 2d (1989) Section 1:60, p. 168, italics in original.) “Payment of the purchase price alone, without the buyer obtaining possession or making substantial improvements to the property, is not sufficient part performance to preclude the application of the statute of frauds.” (Ibid.)

“The principle that full performance takes a contract out of the statute of frauds has been limited to the situation where performance consisted of conveying property, rendering personal services, or doing something other than payment of money.” (Secrest v. Security National Mortgage Loan Trust 2002-2 (2008) 167 Cal.App.4th 544, 556.)

Here, Plaintiff has only alleged that he paid Mary Beth using his savings for investment in both condominiums. (SAC, ¶ 10.) Plaintiff expressly alleges that the parties’ conversations before Plaintiff’s investment “did not contemplate Plaintiff would be active in managing the Condominiums, or even be on title.” (SAC, ¶ 11.) Plaintiff alleges that Defendants “collected rent, paid mortgages and expenses and assigned managers to the Properties,” and Plaintiff “had no direct management in the venture.” (SAC, ¶ 12.)

The court finds that Plaintiff has not sufficiently alleged that either the part performance or full performance exceptions to the statute of frauds applies here.

2. Equitable Estoppel & Promissory Estoppel Exceptions

“The doctrine of estoppel to assert the statute of frauds has been consistently applied by the courts of this state to prevent fraud that would result from refusal to enforce oral contracts in certain circumstances. Such fraud may inhere in the unconscionable injury that would result from denying enforcement of the contract after one party has been induced by the other seriously to change his position in reliance on the contract, [citations], or in the unjust enrichment that would result if a party who has received the benefits of the other’s performance were allowed to rely upon the statute.” (Monarco v. Lo Greco (1950) 35 Cal. 2d, 621, 623-24.) “There can be no estoppel unless plaintiff will suffer unconscionable injury or defendant will be unjustly enriched if the oral contract is not enforced.” (Ruinello v. Murray (1951) 36 Cal.2d 687, 689.) To sufficiently allege an unconscionable injury, a plaintiff must “set forth [the plaintiff’s] rights under the contract given up and show that they were so valuable that unconscionable injury would result from refusing to enforce the oral contract with the defendant.” (Ibid.)

Here, the court finds that Plaintiff has not sufficiently alleged what his rights under the parties’ agreement were. Plaintiff alleges that he “anticipated that when [the Prospect Property and the Village Property] were sold Plaintiff would get half of the proceeds or perhaps the parties would agree on terms for [the Village Property] to be distributed to Plaintiff.” (SAC, ¶ 12.) Having read the SAC in its entirety, the court finds that it alleges an oral agreement for a loan secured by real property. It fails to allege that Plaintiff was seriously induced to change his position because of some conduct by Defendants or that he otherwise suffered an unconscionable injury.

Accordingly, the court concludes that Plaintiff’s first three causes of action are both time-barred and barred by the statute of frauds, and thus Defendants’ Demurrer to Plaintiff’s first three causes of action is SUSTAINED.

As the court has found that Plaintiff’s first three causes of action are barred by the applicable statute of limitations and the remainder of Plaintiff’s causes of action otherwise fail, the court will not address the applicability of the doctrine of laches.

D. Fourth Cause of Action: Resulting Trust

Defendants argue that Plaintiff's fourth cause of action fails because a resulting trust is a remedy rather than a cause of action. In support of their argument, Defendants cite to Stansfield v. Starkey, wherein the court found that the trial court acted within its discretion by sustaining a demurrer without leave to amend as to causes of action for resulting trust and constructive trust, which are legal remedies. (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 76.) However, the Stansfield court also acknowledged that the pleading failed to allege common intent and a specific identifiable property, which is needed for a resulting trust. (Ibid.) Nonetheless, "[w]hile the court in Stansfield v. Starkey stated that a resulting trust as a remedy, not a cause of action, [Citation], other California courts have entertained causes of action that seek to impose a resulting trust." (Concorde Equity II, LLC v. Miller (N.D. Cal. 2010) 732 F.Supp.2d 990, 1002.)

To establish a claim for a resulting trust, a plaintiff must plead two elements: (1) transfer of property; and (2) circumstances showing that the transferee was not intended to take a beneficial interest, such as: (a) plaintiff paid at least part of the consideration for property transfer; and (b) plaintiff clearly established the amount or proportion contributed. (Laing v. Laubach (1965) 233 Cal.App.2d 511, 517.)

"A resulting trust arises by operation of law from a transfer of property under circumstances showing that the transferee was not intended to take the beneficial interest. Such a resulting trust carries out and enforces the inferred intent of the parties." (Lloyds Bank California v. Wells Fargo Bank (1986) 187 Cal.App.3d 1038, 1042.) A resulting trust typically arises "in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another." (Martin v. Kehl (1983) 145 Cal.App.3d 228, 238.) "A resulting trust is implied from the facts, and neither written evidence of an agreement nor a fraud on the part of an alleged trustee is essential to its existence. It arises where title of a property is vested in the trustee while the consideration therefor is paid by the beneficiary." (Jones v. Gore (1956) 141 Cal.App.2d 667, 672-673.)

"Although partial payment of the consideration for property may give rise to a resulting trust to the extent of the payment, the burden is on the party who asserts a pro tanto trust to establish with definiteness and specificity the proportional amount contributed." (Lloyds Bank California, supra, 187 Cal.App.3d at 1044.) "A resulting trust cannot be enforced in favor of a person who has paid part of the consideration for the transfer of property unless it is possible to clearly establish the amount of money contributed by him [or her] or the proportion of his [or her] contribution to the whole purchase price. One who claims a resulting trust in land must establish clearly, convincingly and unambiguously, the precise amount or proportion of the consideration furnished by him [or her]. If the claimant does not, then the presumption of ownership arising from the legal title is not overcome and a resulting trust will not be declared." (Id. at 1044-45.)

Here, Plaintiff alleges that the purchase price for Defendants' interest in the Village Property was "paid entirely from Plaintiff's savings that had been given to the Shroms." (SAC, ¶ 62.) Plaintiff bases his belief on the quitclaim deed transferring a 50% interest in the Village Property to Defendants, recorded on August 20, 1984. (SAC, ¶ 62.) However, as noted by Defendants, the individual quitclaim deed regarding the Village Property is dated August 3, 1983. (Plaintiff's RJN, Exh. 1, p. 1.) Plaintiff alleges that he withdrew his savings from the bank and provided them to Mary Beth for investment in the two condominiums sometime after July 1984. (SAC, ¶¶ 7, 10.) Therefore, the court finds that Plaintiff has not alleged Village Property was transferred to Defendants using Plaintiff's money such that a resulting trust is appropriate.

Moreover, Plaintiff alleges he was given an interest in the "the Condominiums" in exchange for "an approximate amount of $50,000." (SAC ¶ 26.) This allegation is inconsistent with that in Paragraph 62, wherein Plaintiff alleges $30,000 was used to purchase an interest in the "The Village #13." Without clear and convincing evidence of the precise amount of consideration paid, a resulting trust will not be declared.

Regarding the Prospect Property, Plaintiff does not allege that he had any involvement in Defendants' purchase.

Accordingly, Defendants' Demurrer to Plaintiff's fourth cause of action is SUSTAINED.

E. Fifth Cause of Action: Financial Elder Abuse

“[F]inancial abuse of an elder . . . occurs when a person or entity does the following:”

(1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70.

(Welf. & Inst. Code, Section 15610.30(a).)

An “elder” means “any person residing in this state, 65 years of age or older.” (Welf. & Inst. Code, Section 15610.27.)

Plaintiff alleges that “[a]t all times relevant to this cause of action, Defendants knew or should have known that Plaintiff was and is older than 65.” (SAC, ¶ 67.) Plaintiff alleges that he was an “elder” when Defendants notified Plaintiff that they “would not honor their agreement regarding the properties in which Plaintiff’s life savings at the time had been invested.” (SAC, ¶ 68.)

The court finds that Plaintiff’s fifth cause of action is rooted in Plaintiff’s allegations regarding the parties’ oral agreement in 1984, when Plaintiff was less than 65 years old, according to his allegations. Plaintiff has not alleged when Defendants sold the Prospect Property, instead only alleging approximately when Defendants confirmed to Plaintiff that the sale had occurred. Therefore, the court finds that Plaintiff has not sufficiently stated a cause of action for financial elder abuse.

Accordingly, Defendants’ Demurrer to Plaintiff’s fifth cause of action is SUSTAINED.

F. Sixth Cause of Action: Declaratory Relief

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) “The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief” (California Insurance Guarantee Association v. Superior Court (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer (Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290). Further, “there is no basis for declaratory relief where only past wrongs are involved.” (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366, quotation marks omitted.)

The court finds that Plaintiff’s sixth cause of action is dependent upon Plaintiff’s first three contract-based causes of action, which the court has previously concluded are time-barred and additionally barred by the statute of frauds.

Accordingly, Defendants’ Demurrer to Plaintiff’s sixth cause of action is SUSTAINED.

G. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.").) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court notes that Plaintiff has already alleged detailed facts and amended his complaint twice. The court finds that there is no reasonable possibility of successful amendment of Plaintiff's complaint.

As to the first, second, and third causes of action, the Court finds that the statute of frauds and the statute of limitations applicable to Plaintiff's contract-based causes of action bar the claims. As to the statute of frauds, Plaintiff admits that there was no writing detailing the agreement (First Complaint, ¶ 8.) Moreover, the contract was only for the payment of money, so the exceptions to the statute do not apply. As to the statute of limitations, Plaintiff alleges a detailed timeline during which he had decades to research the status of the Properties; exceptions to the statute require some diligence on behalf of the party seeking tolling. Given the detailed allegations in the three complaints, the court finds that Plaintiff will not be able to overcome the statutes of limitation or frauds.

As to the fourth cause of action, it is undisputed the Village Property was transferred to Defendants before any money was given by Plaintiff. This fact alone precludes a resulting trust as a matter of law.

As to the fifth cause of action, Plaintiff can only allege that he was an "elder," during the time period in which he allegedly learned of Defendant's failure to perform; this does not bring the action within the elder abuse statutes.

Finally, as the sixth cause of action is predicated on prevailing on the other causes of action there is nothing left for the court to declare.

Accordingly, the court DENIES leave to amend.

CONCLUSION

Based on the foregoing, Defendants' Demurrer to Plaintiff's SAC is SUSTAINED in its entirety without leave to amend.

Moving party is ordered to give notice of ruling.